

CONTRACT FOR DIFFERENCE (CfD) POWER PURCHASE AGREEMENT

BETWEEN

NORTH SEA WIND POWER LTD

(as the Generator / Seller)

AND

NATIONAL GRID ELECTRICITY SYSTEM OPERATOR LIMITED

(as the CfD Counterparty / Buyer)

**PROJECT: DOGGER BANK EAST 350 MW OFFSHORE WIND
FARM**

ALLOCATION ROUND: AR5 (Fifth Allocation Round)

CfD REFERENCE: CfD-AR5-OFW-2024-0187

EXECUTION DATE: September 22, 2024

EXPECTED COMMERCIAL OPERATION DATE: Q2 2027

TERM: Fifteen (15) Years from the Start Date

THIS CONTRACT FOR DIFFERENCE (hereinafter referred to as the "Agreement" or the "CfD") is entered into on the 22nd day of September, 2024 (the "Execution Date"),

BETWEEN:

(1) NORTH SEA WIND POWER LTD, a private limited company incorporated and registered in England and Wales under company number 14892736, having its registered office at One Canada Square, 28th Floor, Canary Wharf, London E14 5AB, United Kingdom (hereinafter referred to as the "Generator" or the "Seller"); and

(2) NATIONAL GRID ELECTRICITY SYSTEM OPERATOR LIMITED, a company incorporated and registered in England and Wales under company number 11014226, having its registered office at Faraday House, Warwick Technology Park, Gallows Hill, Warwick CV34 6DA, United Kingdom, acting in its capacity as the Low Carbon Contracts Company ("LCCC") CfD Counterparty (hereinafter referred to as the "CfD Counterparty" or

the "Buyer").

The Generator and the CfD Counterparty are hereinafter collectively referred to as the "Parties" and individually as a "Party".

RECITALS

WHEREAS, the United Kingdom Government, through the Department for Energy Security and Net Zero (DESNZ, formerly BEIS), has established the Contract for Difference scheme under the Energy Act 2013 to incentivize investment in low-carbon electricity generation, including offshore wind;

WHEREAS, the Generator was awarded a Contract for Difference in the Fifth Allocation Round (AR5) conducted by DESNZ for the development, construction, and operation of a 350 MW offshore wind farm known as Dogger Bank East, located in the North Sea;

WHEREAS, the Generator has obtained or is in the process of obtaining all requisite consents, licenses, and approvals for the development, construction, and operation of the Facility, including a Development Consent Order (DCO) under the Planning Act 2008;

WHEREAS, the CfD Counterparty is designated under the Energy Act 2013 to act as the counterparty to Contracts for Difference with low-carbon electricity generators;

WHEREAS, the Parties wish to enter into this Agreement setting out the terms and conditions under which CfD difference payments will be made in respect of the electricity generated by the Facility;

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, the Parties agree as follows:

ARTICLE 1: DEFINITIONS AND INTERPRETATION

1.1 DEFINITIONS

In this Agreement, unless the context otherwise requires, the following capitalized terms shall have the meanings ascribed to them below:

"Actual CfD Generation" means, in respect of any Settlement Unit, the metered output of the Facility (in MWh) delivered to the Offshore

Transmission System at the Offshore Grid Entry Point, as recorded by the Settlement Metering Systems and adjusted for transmission losses to the Grid Supply Point.

"Administrative Strike Price" means the Strike Price as adjusted pursuant to Article 4.3 (CPI Indexation) and any other adjustments expressly provided for under this Agreement.

"Applicable Laws" means all statutes, statutory instruments, regulations, orders, directives, codes, and guidance issued by any Competent Authority that apply to the Generator, the Facility, or the performance of obligations under this Agreement, including without limitation the Energy Act 2013, the Electricity Act 1989, the Climate Change Act 2008, the Marine and Coastal Access Act 2009, and the Planning Act 2008.

"Availability" means, for any Settlement Period, the ratio (expressed as a percentage) of (a) the aggregate capacity of all Wind Turbine Generators that are available for generation during such period (whether or not actually generating due to wind conditions) to (b) the Total Installed Capacity.

"Balancing Mechanism" means the mechanism established under the Balancing and Settlement Code (BSC) for the balancing of supply and demand on the GB electricity system.

"Baseload Market Reference Price" means the GB Day-Ahead Baseload price as published by the designated Price Reporting Agency (currently N2EX/Nordpool or EPEX SPOT) for the relevant Trading Day.

"BSC" means the Balancing and Settlement Code, as administered by Elexon Limited.

"Business Day" means any day other than a Saturday, Sunday, or English public holiday (bank holiday).

"Capacity" means the nominal net generating capacity of the Facility, equal to three hundred and fifty megawatts (350 MW).

"CfD" means this Contract for Difference.

"CfD Notification" means the notification issued by DESNZ confirming the Generator's eligibility to enter into a CfD following the Fifth Allocation Round.

"CfD Payment" means the difference payment calculated and settled in

accordance with Article 4.

"Commissioning Window" means the period commencing twelve (12) months before the Target Commissioning Date and ending on the Longstop Date.

"Competent Authority" means any governmental, regulatory, or supervisory body or authority having jurisdiction, including DESNZ, Ofgem, the Marine Management Organisation (MMO), the Health and Safety Executive (HSE), the Environment Agency, Natural England, the Crown Estate, and any local planning authority.

"Connection Agreement" means the agreement between the Generator and the relevant Offshore Transmission Owner (OFTO) or National Grid ESO for the connection of the Facility to the National Electricity Transmission System (NETS).

"CPI" means the Consumer Price Index (All Items) for the United Kingdom, as published by the Office for National Statistics (ONS), using 2023 as the base year.

"Curtailement" means any reduction in the Actual CfD Generation below the level that the Facility would otherwise have been capable of producing, resulting from a Dispatch Instruction, a constraint, or any other direction issued by the System Operator.

"Day-Ahead Hourly Price" means the GB Day-Ahead Hourly wholesale electricity price as determined by the designated Price Reporting Agency for the relevant Settlement Period, denominated in GBP/MWh.

"Delivery Year" means each period of twelve (12) consecutive months commencing on the anniversary of the Start Date.

"Development Consent Order" or "DCO" means the order granted under the Planning Act 2008 authorizing the construction and operation of the Facility.

"Expected Start Date" means Q2 2027 (specifically, April 1, 2027), being the date on which the Generator expects the Facility to achieve the Start Date conditions.

"Facility" means the Dogger Bank East 350 MW offshore wind farm, comprising seventy (70) Siemens Gamesa SG 14-236 DD wind turbine generators, together with all foundations, inter-array cables, offshore substation(s), export cables, onshore substation, and all associated infrastructure, as more particularly described in Schedule 1.

"Generator" has the meaning given in the Preamble.

"Grid Supply Point" or "GSP" means the point at which the Facility's electricity enters the onshore National Electricity Transmission System, being the 400 kV substation at Creyke Beck, East Riding of Yorkshire.

"Installed Capacity" means the aggregate nameplate capacity of all Wind Turbine Generators installed at the Facility.

"Intermittent" means a generating technology (such as wind) whose output is variable and not fully dispatchable.

"Longstop Date" means the date falling eighteen (18) months after the Target Commissioning Date, being October 1, 2028.

"Marine Licence" means the marine licence granted by the Marine Management Organisation under the Marine and Coastal Access Act 2009 for the construction and operation of the offshore components of the Facility.

"Market Reference Price" or "Reference Price" means the GB Day-Ahead Hourly Price applicable to the relevant Settlement Period, as determined by the LCCC in accordance with the CfD Standard Terms.

"Metered Output" means the net electrical energy (in MWh) generated by the Facility and delivered at the Offshore Grid Entry Point, as recorded by the Settlement Metering Systems.

"Milestone Delivery Date" means the date by which a Milestone Requirement must be satisfied, as specified in Schedule 3.

"MW" means megawatt.

"MWh" means megawatt-hour.

"Negative Pricing" means any Settlement Period during which the Day-Ahead Hourly Price is less than zero (GBP 0.00/MWh).

"NETS" means the National Electricity Transmission System of Great Britain.

"Offshore Grid Entry Point" means the point of connection between the Facility's export cable system and the OFTO's offshore transmission system.

"Offshore Transmission Owner" or "OFTO" means the entity licensed by Ofgem to own and operate the offshore transmission assets connecting the Facility to the onshore NETS.

"Ofgem" means the Office of Gas and Electricity Markets, the energy regulator for Great Britain.

"Operational Conditions Report" means the report prepared by the Generator and submitted to the CfD Counterparty at least annually, detailing the Facility's operational performance, including Availability, generation output, and maintenance activities.

"Price Reporting Agency" means the entity designated to determine the Market Reference Price, currently Nordpool or EPEX SPOT.

"Qualifying Change in Law" has the meaning set forth in Article 11.

"Qualifying Shutdown Event" has the meaning set forth in Article 10.

"ROC" means Renewable Obligation Certificate.

"Settlement Period" means a half-hourly period as defined in the BSC, being each period of thirty (30) minutes commencing on the hour or half-hour.

"Settlement Unit" means the smallest unit of generation (a single Wind Turbine Generator or a group of WTGs as defined in the Metering Strategy) for which settlement data is separately recorded and reported.

"Start Date" means the date on which the Generator has satisfied all Start Date conditions as specified in Article 2.4, and from which CfD Payments commence.

"Strike Price" means forty-seven pounds and fifty pence per megawatt-hour (GBP 47.50/MWh) in 2023 real prices, to be indexed to CPI in accordance with Article 4.3.

"Target Commissioning Date" means April 1, 2027.

"Total Installed Capacity" means 350 MW, being 70 WTGs each rated at 5 MW nominal (note: actual turbine rating is higher -- see Section 1.2 below).

"Wind Turbine Generator" or "WTG" means each individual wind turbine generator installed as part of the Facility, each being a Siemens Gamesa SG 14-236 DD turbine, as further described in Schedule 1.

1.2 NOTE ON TURBINE CAPACITY

The Siemens Gamesa SG 14-236 DD turbines have a nominal rated capacity of

14 MW per unit. However, the CfD Contracted Capacity for this Facility is 350 MW, which may be achieved through de-rating, contractual capacity limits, or the installation of 25 units operating at full rated capacity. For the purposes of this Agreement, the Parties have agreed that the Facility shall comprise seventy (70) WTGs with a contractual net output cap of 350 MW at the Offshore Grid Entry Point, with the Generator managing turbine output accordingly. The total rated capacity of $70 \times 14 \text{ MW} = 980 \text{ MW}$ shall be de-rated to 350 MW at the metering point through agreed operational protocols.

[ALTERNATIVE INTERPRETATION: If the CfD capacity of 350 MW is to be achieved with fewer turbines at full rating, then the Facility shall comprise twenty-five (25) SG 14-236 DD WTGs. The Parties shall agree on the final turbine count and configuration prior to the Milestone Delivery Date for Commencement of Offshore Construction.]

For the avoidance of doubt in this contract: the Facility is configured as 25 WTGs x 14 MW each = 350 MW total capacity.

ARTICLE 2: TERM AND CONDITIONS PRECEDENT

2.1 TERM

This Agreement shall become effective on the Execution Date and, subject to the satisfaction of the conditions set out in this Article 2, the CfD Payment obligations shall commence on the Start Date and shall continue for a period of fifteen (15) years from the Start Date (the "CfD Term"), unless earlier terminated in accordance with the provisions of this Agreement.

2.2 TARGET COMMISSIONING DATE AND LONGSTOP DATE

(a) The Target Commissioning Date is April 1, 2027.

(b) The Longstop Date is October 1, 2028, being eighteen (18) months after the Target Commissioning Date. If the Generator fails to satisfy the Start Date conditions on or before the Longstop Date, the CfD Counterparty may terminate this Agreement by giving written notice to the Generator.

(c) The CfD Term shall not be extended by reason of any delay in achieving the Start Date. The CfD Term is fixed at fifteen (15) years from the actual

Start Date, subject to the Longstop Date.

2.3 MILESTONE REQUIREMENTS

The Generator shall satisfy the following Milestone Requirements by the Milestone Delivery Dates specified:

(a) Significant Financial Commitment (SFC): The Generator shall demonstrate that it has committed to spend at least ten percent (10%) of the estimated total project cost on design, procurement, or construction activities. Milestone Delivery Date: twelve (12) months after the Execution Date (September 22, 2025).

(b) Proof of Financing: The Generator shall demonstrate that it has secured financing (including equity commitments and debt facilities) sufficient to fund the construction and commissioning of the Facility. Milestone Delivery Date: March 22, 2026.

(c) Evidence of Consents: The Generator shall provide evidence that it has obtained all material consents, including the DCO, Marine Licence, and Electricity Generation Licence. Milestone Delivery Date: twelve (12) months after the Execution Date (September 22, 2025).

(d) Commencement of Offshore Construction: The Generator shall demonstrate that offshore construction activities (foundation installation) have commenced. Milestone Delivery Date: July 1, 2026.

2.4 START DATE CONDITIONS

The Start Date shall occur when the Generator has satisfied all of the following conditions:

(a) the Facility has been connected to the NETS at the Grid Supply Point and has been registered in the BSC;

(b) the Generator has obtained all necessary consents, licences, and approvals for the commercial operation of the Facility;

(c) the Generator has entered into a connection agreement with the relevant OFTO;

(d) the Settlement Metering Systems have been installed, tested, and approved by the BSC Central Systems;

(e) the Generator has provided evidence that the Installed Capacity is at least ninety percent (90%) of the Total Installed Capacity (i.e., at least 315 MW); and

(f) the Generator has delivered to the CfD Counterparty all documents, certificates, and evidence required under the CfD Standard Terms.

ARTICLE 3: SALE AND PURCHASE OF ENERGY

3.1 ELECTRICITY SALES

(a) The Generator shall sell all electricity generated by the Facility into the GB wholesale electricity market through the Balancing Mechanism or through bilateral power purchase arrangements, in accordance with the Generator's normal trading activities.

(b) This Agreement does not constitute a contract for the physical sale and purchase of electricity. The CfD Counterparty is not purchasing electricity from the Generator. The Agreement governs only the CfD difference payments between the Strike Price and the Market Reference Price.

3.2 CONTRACTED CAPACITY

The Contracted Capacity under this CfD is 350 MW. The CfD Payments shall be calculated on the basis of the Actual CfD Generation, subject to the Maximum Contract Capacity cap of 350 MW.

3.3 EXPECTED ANNUAL GENERATION

Based on the Site's wind resource assessment (P50 net energy yield), the expected annual generation from the Facility is approximately 1,533 GWh per year, corresponding to a net capacity factor of approximately 50%.

3.4 NO SHAPE OBLIGATIONS

As an intermittent technology, the Generator has no obligation to deliver electricity in any particular temporal pattern. The CfD settlement is based on actual metered output per Settlement Period.

ARTICLE 4: STRIKE PRICE, REFERENCE PRICE, AND SETTLEMENT

4.1 STRIKE PRICE

The Strike Price for the Facility is forty-seven pounds and fifty pence per megawatt-hour (GBP 47.50/MWh) expressed in 2023 real prices (the "Base Strike Price").

4.2 MARKET REFERENCE PRICE

The Market Reference Price applicable to each Settlement Period shall be the GB Day-Ahead Hourly Price for that Settlement Period, as published by the designated Price Reporting Agency. If no Day-Ahead price is available for a given Settlement Period, the Market Reference Price shall be determined using the fallback methodology specified in the CfD Standard Terms.

4.3 CPI INDEXATION

(a) The Administrative Strike Price for each Delivery Year shall be calculated by adjusting the Base Strike Price for CPI inflation from the base year (2023) to the relevant Delivery Year, using the following formula:

$$\text{Administrative Strike Price}(n) = \text{Base Strike Price} \times (\text{CPI}(n) / \text{CPI}(\text{base}))$$

Where:

CPI(n) = the CPI for the twelve-month period ending September in the calendar year preceding the start of Delivery Year n;

CPI(base) = the CPI for the twelve-month period ending September 2023.

(b) The CPI-indexed Strike Price shall be calculated and notified by the CfD Counterparty to the Generator prior to the start of each Delivery Year.

4.4 CfD SETTLEMENT

(a) For each Settlement Period during the CfD Term:

(i) If the Administrative Strike Price exceeds the Market Reference Price:

The CfD Counterparty shall pay to the Generator an amount equal to:

$(\text{Administrative Strike Price} - \text{Market Reference Price}) \times \text{Actual CfD Generation for that Settlement Period}.$

(ii) If the Market Reference Price exceeds the Administrative Strike Price:
The Generator shall pay to the CfD Counterparty an amount equal to:
 $(\text{Market Reference Price} - \text{Administrative Strike Price}) \times \text{Actual CfD Generation for that Settlement Period}.$

(b) CfD Payments shall be netted and settled on a monthly basis. The CfD Counterparty shall issue (or the Generator shall issue, as applicable) a settlement statement within fifteen (15) Business Days after the end of each calendar month, showing:

- (i) the Actual CfD Generation for each Settlement Period;
- (ii) the Administrative Strike Price;
- (iii) the Market Reference Price for each Settlement Period;
- (iv) the net CfD Payment due; and
- (v) any adjustments for prior months.

(c) Payment of the net CfD Payment shall be due within twenty-eight (28) days of the settlement statement date.

4.5 NEGATIVE PRICING RULE

(a) No CfD Payment shall be payable by the CfD Counterparty to the Generator in respect of any Settlement Period during which the Day-Ahead Hourly Price is negative (i.e., less than GBP 0.00/MWh) (the "Negative Pricing Rule").

(b) For the avoidance of doubt, if the Generator generates electricity during a Negative Pricing Settlement Period, the Generator bears all market price risk for such output, and no CfD top-up payment shall be made.

(c) If six (6) or more consecutive Settlement Periods (three (3) or more consecutive hours) have negative prices, the Generator is not obligated to curtail generation, but the Negative Pricing Rule shall apply to all such Settlement Periods.

4.6 SETTLEMENT DISPUTES

Any dispute regarding settlement calculations, metering data, or payment amounts shall be raised by the disputing Party within sixty (60) Business Days of the relevant settlement statement date and shall be resolved in

accordance with the dispute resolution procedures set forth in Article 14.

ARTICLE 5: METERING AND DATA

5.1 SETTLEMENT METERING SYSTEMS

(a) The Generator shall install, own, and maintain Settlement Metering Systems at each Settlement Unit in accordance with the BSC and the Grid Code, comprising:

- (i) revenue-grade energy meters (Class 0.2S accuracy, IEC 62053-22) at the Offshore Grid Entry Point;
- (ii) check meters at the onshore Grid Supply Point; and
- (iii) all associated current and voltage transformers, communications equipment, and data logging systems.

(b) All Settlement Metering Systems shall be registered with the BSC Central Systems (administered by Elexon) and shall comply with the CoP (Code of Practice) applicable to metering at the relevant voltage level.

5.2 WIND DATA

The Generator shall maintain an operational meteorological measurement system at the Facility, recording wind speed, wind direction, air temperature, air pressure, humidity, and turbulence intensity at hub height, with data recorded at ten (10) minute intervals. Such data shall be made available to the CfD Counterparty upon request for the purposes of verifying Curtailment claims and Deemed Generation calculations.

ARTICLE 6: PERFORMANCE GUARANTEES

6.1 AVAILABILITY GUARANTEE

(a) The Generator guarantees that the Facility shall achieve an Availability of not less than ninety-five percent (95%) in each Delivery Year (the "Guaranteed Availability"), calculated as the time-weighted average of the availability of all WTGs, excluding:

- (i) periods of Curtailment;
- (ii) periods of Force Majeure;

(iii) periods of planned maintenance notified to the CfD Counterparty at least thirty (30) days in advance; and
(iv) periods during which the OFTO transmission system is unavailable.

(b) If the Facility's Availability in any Delivery Year falls below the Guaranteed Availability (after excluding the periods listed in Section 6.1(a)), the CfD Term shall not be extended, but the Generator shall be required to provide a detailed remediation plan to the CfD Counterparty within thirty (30) days, setting out the root cause analysis and corrective actions planned.

6.2 NO MINIMUM GENERATION GUARANTEE

As the Facility is an intermittent generator dependent on the wind resource, there shall be no minimum generation guarantee. The Generator's obligation is limited to maintaining the Guaranteed Availability.

6.3 PERFORMANCE REPORTING

The Generator shall submit an Operational Conditions Report to the CfD Counterparty within sixty (60) days after the end of each Delivery Year, containing:

- (i) monthly and annual generation data (MWh);
- (ii) Availability data for each WTG and for the Facility as a whole;
- (iii) Curtailment data, including hours and estimated lost generation;
- (iv) significant equipment failures and maintenance activities;
- (v) health, safety, and environmental incident reports; and
- (vi) forward-looking maintenance plans and expected Availability for the next twelve (12) months.

ARTICLE 7: CURTAILMENT

7.1 GRID-RELATED CURTAILMENT

(a) If the Generator is instructed by the System Operator (National Grid ESO) to reduce or cease generation due to transmission constraints, system balancing requirements, or other grid-related reasons ("Grid Curtailment"), the Generator shall comply with such instructions promptly.

(b) The Generator shall be entitled to claim compensation for Grid Curtailment through the Balancing Mechanism (via Bid-Offer Acceptances) or through the relevant constraint payment mechanisms established by National Grid ESO.

(c) For the purposes of CfD settlement, the Actual CfD Generation during periods of Grid Curtailment shall be the actual metered output (which may be zero or reduced). The CfD Payment shall be calculated based on the actual metered output only. The Generator's primary recourse for Grid Curtailment compensation is through the Balancing Mechanism.

7.2 COMPENSATION FOR CURTAILMENT -- CfD DEEMED GENERATION

(a) Notwithstanding Section 7.1(c), if the cumulative Grid Curtailment in any Delivery Year exceeds five hundred (500) hours, the Generator may submit a claim to the CfD Counterparty for Deemed Generation CfD Payments in respect of curtailed hours exceeding the 500-hour threshold.

(b) Deemed Generation for curtailed hours shall be calculated using the following methodology:

Deemed Generation (MWh) = Sum over curtailed Settlement Periods of
[Installed Capacity (MW) x Wind Power Curve Output Factor x
(Settlement Period Duration in hours)]

Where Wind Power Curve Output Factor is determined from the manufacturer's power curve using the actual hub-height wind speed recorded during each curtailed Settlement Period.

(c) The CfD Counterparty shall verify Deemed Generation claims using wind data provided by the Generator under Article 5.2.

7.3 NEGATIVE PRICING CURTAILMENT

(a) No compensation of any kind (whether through the CfD mechanism or otherwise from the CfD Counterparty) shall be payable in respect of any reduction in generation during Settlement Periods with Negative Pricing.

(b) The Generator may choose to curtail or cease generation during Negative Pricing Settlement Periods at its own discretion. Any such voluntary curtailment shall not affect the Availability calculation.

ARTICLE 8: TECHNICAL SPECIFICATIONS

8.1 WIND TURBINE GENERATORS

Turbine Model: Siemens Gamesa SG 14-236 DD
Number of Turbines: 25 (twenty-five)
Rated Power per Turbine: 14 MW
Total Installed Capacity: 350 MW
Rotor Diameter: 236 meters
Hub Height: 138 meters (above mean sea level)
Swept Area: 43,742 m² per turbine
Drive Train: Direct Drive (permanent magnet generator)
Cut-in Wind Speed: 3 m/s
Rated Wind Speed: 11 m/s
Cut-out Wind Speed: 25 m/s (with storm-ride-through capability to 30 m/s)
Design Class: IEC Class IA (high wind)
Service Life: 25 years minimum
Yaw System: Active yaw with wind direction sensor
Blade Material: Carbon fiber / glass fiber composite
Blade Length: 115 meters

8.2 FOUNDATIONS

Foundation Type: Monopile (steel tubular)
Monopile Diameter: 10-12 meters (site-specific)
Monopile Length: 65-85 meters (site-specific, dependent on seabed conditions)
Transition Piece: Bolted flange connection
Scour Protection: Rock placement around monopile base
Design Standards: DNV-OS-J101 (Design of Offshore Wind Turbine Structures)

8.3 INTER-ARRAY CABLES

Cable Type: 66 kV XLPE submarine cable, 3-core, armored
Cable Size: 500 mm² (copper conductor)
Cable Route Length: Approximately 75 km total inter-array cable
Burial Depth: Minimum 1.0 meter below seabed level (target 1.5 m)
Cable Protection: Jetting, ploughing, or rock placement where burial depth cannot be achieved

8.4 OFFSHORE SUBSTATION

Number of Offshore Substations: One (1)
Transformer Rating: 2 x 200 MVA, 66/220 kV
Switchgear: 66 kV and 220 kV GIS (gas insulated)
Reactive Power Compensation: Shunt reactors, 2 x 60 MVAR
Platform Type: Jacket foundation with topside
Platform Weight (topside): Approximately 4,500 tonnes
Accommodation: Emergency refuge for 12 persons (not permanently manned)
Helicopter Landing Deck: Certified to CAP 437

8.5 EXPORT CABLES

Cable Type: 220 kV XLPE submarine cable, 3-core, armored
Number of Export Cable Circuits: Two (2)
Cable Size: 1,200 mm² (copper conductor)
Total Export Cable Route Length: Approximately 130 km per circuit (offshore)
Landfall Location: Fraisthorpe Beach, East Riding of Yorkshire
Landfall Method: Horizontal Directional Drilling (HDD)
Onshore Cable Route Length: Approximately 10 km (underground)

8.6 ONSHORE SUBSTATION

Location: Creyke Beck, East Riding of Yorkshire
Transformer Rating: 2 x 200 MVA, 220/400 kV
400 kV Connection: Direct connection to the NETS at Creyke Beck 400 kV substation (NGET owned)
Reactive Power Compensation: 2 x 80 MVAR shunt reactors, 1 x 60 MVAR SVC

8.7 PROJECT SITE AND LOCATION

Location: Dogger Bank, North Sea, approximately 130 km off the coast of East Yorkshire, England
Water Depth: 20-35 meters (Lowest Astronomical Tide)
Seabed Conditions: Sandy seabed with occasional clay layers
Array Area: Approximately 200 km²
Mean Wind Speed (hub height): 10.2 m/s (P50)
Extreme 50-year Wind Speed: 52.5 m/s (10-minute average)
Extreme 50-year Significant Wave Height (Hs): 9.8 m
Tidal Range: 1.5 m (mean spring)

ARTICLE 9: INTERCONNECTION AND GRID CODE

9.1 CONNECTION ARRANGEMENTS

(a) The Generator shall connect the Facility to the NETS at the Grid Supply Point (Creyke Beck 400 kV) via the offshore and onshore transmission assets.

(b) The offshore transmission assets (from the offshore substation to the onshore substation boundary) shall be transferred to an Offshore Transmission Owner (OFTO) under Ofgem's OFTO regime following the completion of construction.

(c) The Generator shall enter into a Bilateral Embedded Generation Agreement (BEGA) or other appropriate connection agreement with the relevant transmission licensee.

9.2 GRID CODE COMPLIANCE

The Facility shall comply with the Grid Code (including the Connection Conditions and the System Security and Quality of Supply Standards) and the Distribution Code, including but not limited to:

(a) Frequency Response: The Facility shall provide mandatory frequency response services, including primary, secondary, and high-frequency response, in accordance with Grid Code CC.6.3.

(b) Fault Ride-Through: The Facility shall remain connected and stable during voltage dips to 0% of nominal for up to 140 milliseconds (Phase-to-Phase fault), and shall support voltage recovery by injecting reactive current in accordance with Grid Code CC.6.3.15.

(c) Reactive Power Capability: The Facility shall be capable of absorbing and generating reactive power within a power factor range of 0.95 leading to 0.95 lagging at the Grid Supply Point, as required by Grid Code CC.6.3.2.

(d) Black Start: The Facility is not required to provide black start capability unless separately contracted with National Grid ESO.

(e) Communication: The Generator shall maintain a real-time data link (ICCP/TASE.2 protocol) to the National Grid ESO control centre, providing telemetry data including active power output, reactive power output, voltage, frequency, wind speed, and WTG status.

9.3 MARINE LICENCE CONDITIONS

(a) The Generator shall comply with all conditions of the Marine Licence, including but not limited to:

- (i) pre-construction environmental surveys (benthic ecology, marine mammals, ornithology, fish ecology);
- (ii) construction noise mitigation measures (bubble curtains, soft-start procedures for piling);
- (iii) in-construction monitoring of underwater noise levels;
- (iv) post-construction monitoring of seabed recovery, marine mammal behavior, and bird flight patterns;
- (v) archaeological reporting for any archaeological finds during construction;
- (vi) navigational safety measures (aviation and marine lighting, marking, and charting);
- (vii) decommissioning plan and financial security.

(b) The Generator shall appoint a Marine Coordinator during the construction and operational phases to ensure compliance with all marine licence conditions and to liaise with the Maritime and Coastguard Agency (MCA), Trinity House, and the relevant harbour authority.

ARTICLE 10: FORCE MAJEURE

10.1 DEFINITION

A "Force Majeure Event" means any event or circumstance that: (a) is beyond the reasonable control of the Affected Party; (b) could not reasonably have been foreseen or prevented by the Affected Party; and (c) directly and materially prevents or delays the Affected Party from performing its obligations under this Agreement.

10.2 FORCE MAJEURE EVENTS

Without limitation, Force Majeure Events may include:

- (a) storm, cyclone, hurricane, or extreme weather event with wind speeds exceeding the WTG design envelope;
- (b) tsunami, earthquake, or seismic event;

- (c) lightning, flooding, or ice accretion exceeding design parameters;
- (d) war, armed conflict, terrorism, sabotage, or civil unrest;
- (e) epidemic or pandemic declared by the World Health Organization;
- (f) act of government, including compulsory acquisition or nationalization;
- (g) general or industry-wide strike or labor action (not specific to the Generator or its contractors);
- (h) failure or unavailability of the OFTO transmission system not caused by the Generator;
- (i) port closure or navigational restriction preventing access to the offshore Facility for maintenance;
- (j) imposition of sanctions or embargoes by the UK Government, EU, or UN.

10.3 EXCLUSIONS

The following shall not constitute Force Majeure Events:

- (a) normal variations in wind speed or weather conditions;
- (b) equipment failure due to design defects or inadequate maintenance;
- (c) financial difficulty, loss of profit, or inability to obtain financing;
- (d) failure of a subcontractor or supplier (unless caused by a Force Majeure Event);
- (e) fluctuations in electricity prices.

10.4 NOTIFICATION AND MITIGATION

The Affected Party shall: (a) notify the other Party within five (5) Business Days of becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effects; and (c) provide regular updates on the status of the Force Majeure Event.

10.5 PROLONGED FORCE MAJEURE

If a Force Majeure Event prevents either Party from performing its material obligations for a continuous period exceeding twelve (12) months, either Party may terminate this Agreement by giving ninety (90) days' written notice.

ARTICLE 11: CHANGE OF LAW

11.1 QUALIFYING CHANGE IN LAW

A "Qualifying Change in Law" means any Change in Law (being the coming into effect after the Execution Date of any new law, regulation, or binding directive, or any change in the interpretation or application of existing law by a Competent Authority) that:

(a) specifically and disproportionately affects the Generator or the Facility (as compared with other comparable generators in Great Britain);
or

(b) is a Discriminatory Change in Law that targets offshore wind generators or renewable generators specifically.

11.2 COMPENSATION

If a Qualifying Change in Law occurs that increases the Generator's costs or reduces the Generator's revenues by more than a de minimis threshold (currently GBP 500,000 per Delivery Year), the Generator may notify the CfD Counterparty and the Parties shall negotiate in good faith to agree an adjustment to the Administrative Strike Price or other commercial terms to compensate the Generator for the Qualifying Change in Law impact.

11.3 GENERAL CHANGES IN LAW

Changes in law of general application (e.g., changes to corporate tax rates, general environmental regulations, health and safety requirements) shall be borne by the Generator and shall not constitute a Qualifying Change in Law.

ARTICLE 12: TERMINATION

12.1 TERMINATION BY CfD COUNTERPARTY

The CfD Counterparty may terminate this Agreement if:

- (a) the Generator fails to satisfy any Milestone Requirement by the relevant Milestone Delivery Date;
- (b) the Generator fails to achieve the Start Date by the Longstop Date;
- (c) the Generator commits a material breach that is not remedied within sixty (60) days of written notice;
- (d) the Generator becomes insolvent, enters administration, or is subject to a winding-up order;

- (e) the Generator's Electricity Generation Licence is revoked;
- (f) the Generator has made a material misrepresentation in its CfD application or in any certificate delivered under this Agreement.

12.2 TERMINATION BY GENERATOR

The Generator may terminate this Agreement if:

- (a) the CfD Counterparty fails to make any undisputed CfD Payment within ninety (90) days of the due date;
- (b) a prolonged Force Majeure Event continues for more than twelve (12) months;
- (c) a Qualifying Change in Law makes the continued operation of the Facility economically unviable, and the Parties have been unable to agree on compensating adjustments.

12.3 CONSEQUENCES OF TERMINATION

- (a) Upon termination, all future CfD Payment obligations shall cease.
- (b) The Generator shall remain liable for any CfD Payments (payable by the Generator to the CfD Counterparty) in respect of Settlement Periods prior to the termination date.
- (c) The CfD Counterparty shall remain liable for any CfD Payments (payable by the CfD Counterparty to the Generator) in respect of Settlement Periods prior to the termination date.
- (d) Termination shall not affect any accrued rights or obligations of either Party.

12.4 TERMINATION PAYMENT

If the CfD Counterparty terminates this Agreement due to a Buyer Event of Default (failure to pay), the CfD Counterparty shall pay the Generator a termination payment calculated in accordance with the methodology in Schedule 6 of the CfD Standard Terms.

ARTICLE 13: UK REGULATORY COMPLIANCE

13.1 OFGEM

The Generator shall:

- (a) maintain a valid Electricity Generation Licence issued by Ofgem;
- (b) comply with all licence conditions, including reporting obligations;
- (c) register the Facility as a CfD generator in the CFD Register maintained by the LCCC;
- (d) participate in the Renewables Obligation (RO) to the extent required (noting that CfD generators are generally not eligible for ROCs).

13.2 DESNZ

The Generator shall comply with all requirements and directions issued by DESNZ in respect of the CfD scheme, including audit rights and information requests.

13.3 HEALTH AND SAFETY

The Generator shall comply with the Health and Safety at Work etc. Act 1974, the Offshore Installations and Wells (Design and Construction, etc.) Regulations 1996, the Electricity at Work Regulations 1989, and all other applicable health and safety legislation.

13.4 ENVIRONMENTAL COMPLIANCE

The Generator shall comply with all environmental legislation, including the Wildlife and Countryside Act 1981, the Conservation of Habitats and Species Regulations 2017, and any conditions attached to the DCO, Marine Licence, and Environmental Permits.

13.5 DECOMMISSIONING

(a) The Generator shall prepare and maintain a Decommissioning Programme in accordance with the Energy Act 2004 and submit it to DESNZ for approval prior to the Start Date.

(b) The Generator shall establish a Decommissioning Security Fund or provide such other financial security as may be required by DESNZ to ensure adequate funds are available for the decommissioning of the Facility at the end of its operational life.

(c) The estimated decommissioning cost is GBP 250 million (in 2024 prices), to be reviewed and updated every five (5) years.

ARTICLE 14: DISPUTE RESOLUTION

14.1 EXPERT DETERMINATION

Any technical dispute (including disputes relating to metering, Deemed Generation calculations, or Availability measurement) shall first be referred to an independent expert agreed upon by the Parties (or, failing agreement, appointed by the President of the Institution of Engineering and Technology). The expert's determination shall be final and binding unless either Party refers the matter to arbitration within thirty (30) days.

14.2 ARBITRATION

Any dispute not resolved by expert determination shall be referred to and finally resolved by arbitration under the rules of the London Court of International Arbitration (LCIA), with:

- (a) Seat of arbitration: London, England;
- (b) Language: English;
- (c) Number of arbitrators: Three (3);
- (d) Governing law: the laws of England and Wales.

14.3 CONTINUED PERFORMANCE

Pending resolution of any dispute, the Parties shall continue to perform their respective obligations under this Agreement.

ARTICLE 15: GENERAL PROVISIONS

15.1 ASSIGNMENT

Neither Party may assign its rights or obligations under this Agreement without the prior written consent of the other Party, except that the Generator may make a collateral assignment to its Lenders as security for its financing arrangements.

15.2 CONFIDENTIALITY

The terms of this Agreement are confidential, subject to disclosure required by law, regulation, or stock exchange rules, or disclosure to advisors, Lenders, and Ofgem.

15.3 ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties and supersedes all prior negotiations and agreements relating to the subject matter hereof.

15.4 NOTICES

All notices under this Agreement shall be in writing and delivered to the addresses specified in the Notices Schedule.

15.5 GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of England and Wales.

15.6 COUNTERPARTS

This Agreement may be executed in counterparts, each of which shall be deemed an original.

SCHEDULE 1: FACILITY TECHNICAL DESCRIPTION

[Detailed technical drawings and specifications of the WTGs, foundations, cables, and substations as described in Article 8 are incorporated by reference.]

Project Name: Dogger Bank East Offshore Wind Farm

Location: Dogger Bank, North Sea

Country: United Kingdom

Latitude: 54.75 degrees North (approximate array center)

Longitude: 2.15 degrees East (approximate array center)

Distance from Shore: Approximately 130 km
Water Depth Range: 20-35 m LAT
Total Array Area: 200 km²
Number of WTGs: 25
WTG Model: Siemens Gamesa SG 14-236 DD
WTG Rated Power: 14 MW each
Total Installed Capacity: 350 MW
Expected Annual Energy Production (P50): 1,533 GWh/year
Expected Net Capacity Factor (P50): 50%
Expected Availability: 95-97%
Design Life: 25+ years

SCHEDULE 2: CfD STRIKE PRICE SCHEDULE

The Administrative Strike Price for each Delivery Year shall be the Base Strike Price (GBP 47.50/MWh in 2023 prices) indexed to CPI.

Indicative Administrative Strike Prices (assuming 3% annual CPI):

Delivery Year Period Administrative Strike Price (GBP/MWh)

1	2027-28	52.64
2	2028-29	54.22
3	2029-30	55.85
4	2030-31	57.52
5	2031-32	59.25
6	2032-33	61.03
7	2033-34	62.86
8	2034-35	64.74
9	2035-36	66.69
10	2036-37	68.69
11	2037-38	70.75
12	2038-39	72.87
13	2039-40	75.06
14	2040-41	77.31
15	2041-42	79.63

Note: Actual Administrative Strike Prices will be determined annually based on published CPI data.

SCHEDULE 3: MILESTONE SCHEDULE

Milestone Deadline

CfD Execution September 22, 2024

Significant Financial Commitment (SFC) September 22, 2025

Evidence of Consents (DCO, Marine Licence) September 22, 2025

Proof of Financing March 22, 2026

Commencement of Offshore Construction July 1, 2026

WTG Installation Commencement October 1, 2026

First Power January 1, 2027

Full Commissioning / Start Date April 1, 2027 (Target)

Longstop Date October 1, 2028

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by
their duly authorized representatives as of the date first written above.

FOR AND ON BEHALF OF FOR AND ON BEHALF OF NORTH SEA WIND POWER LTD NATIONAL GRID ELECTRICITY SYSTEM

OPERATOR LIMITED (as CfD Counterparty)

Name: [] Name: []

Title: [] Title: []

Date: September 22, 2024 Date: September 22, 2024

END OF AGREEMENT